

**656.2 Notice.**

1. The forfeiture shall be initiated by the vendor by serving on the vendee a written notice which shall:

- a. Reasonably identify the contract by a document reference number and accurately describe the real estate covered.
- b. Specify the terms of the contract with which the vendee has not complied.
- c. State that unless, within thirty days after the completed service of the notice, the vendee performs the terms in default and pays the reasonable costs of serving the notice, the contract will be forfeited.
- d. Specify the amount of attorney fees claimed by the vendor pursuant to [section 656.7](#) and state that payment of the attorney fees is not required to comply with the notice and prevent forfeiture.

2. a. The vendor shall also serve a copy of the notice required in [subsection 1](#) on the person in possession of the real estate, if different than the vendee; on all the vendee's mortgagees of record; and on a person who asserts a claim against the vendee's interest, except a government or governmental subdivision or agency holding a lien for real estate taxes or assessments, if the person has done both of the following:

(1) Requested, on a form which substantially complies with the following form, that notice of forfeiture be served on the person at an address specified in the request.

REQUEST FOR NOTICE PURSUANT TO  
IOWA CODE [SECTION 656.2, SUBSECTION 2](#)

The undersigned requests service of notice under Iowa Code [sections 656.2](#) and [656.3](#) to forfeit the contract recorded on the ..... day of ..... (month), ..... (year), in book or roll ....., image or page ....., office of the ..... county recorder, ..... county, Iowa, wherein ..... is/are seller(s) and ..... is/are buyer(s), for sale of real estate legally described as: [insert complete legal description]

NAME

.....  
.....  
.....

ADDRESS

CAUTION: Your name and address must be correct. If not correct, you will not receive notice requested because notice need only be served on you at the above address. If your address changes, a new request for notice must be filed.

(2) Filed the request form for record in the office of the county recorder after acquisition of the vendee's interest but prior to the date of recording of the proof and record of service of notice of forfeiture required by [section 656.5](#) and paid a fee of five dollars.

b. The request for notice is valid for a period of five years from the date of filing with the county recorder. The request for notice may be renewed for additional periods of five years by the procedure specified in [this subsection](#). The request for notice may be amended at any time by the procedure specified in [this subsection](#). The request for notice shall be indexed.

c. The vendee's mortgagees of record include all assignees of record for collateral purposes.

3. As used in [this section](#), the terms "vendor" and "vendee" include a successor in interest

but the term “*vendee*” excludes a vendee who assigned or conveyed of record all of the vendee’s interest in the real estate.

[C97, §4299; S13, §4299; C24, 27, 31, 35, 39, §12390; C46, 50, 54, 58, 62, 66, 71, 73, 75, 77, 79, 81, §656.2]

84 Acts, ch 1203, §2; 86 Acts, ch 1237, §41; 87 Acts, ch 166, §1; 91 Acts, ch 161, §1; 2000 Acts, ch 1058, §56; 2001 Acts, ch 44, §32; 2003 Acts, ch 108, §112; 2003 Acts, 1st Ex, ch 2, §44, 209; 2013 Acts, ch 90, §219

Referred to in §656.3, 656.8